

1.

CASE #	CASE NAME	HEARING NAME
RIC1412729	LAW OFFICES OF GARY A BEMIS VS CANSINO	MOTION FOR ORDER THAT RENEWAL OF JUDGMENT WAS TIMELY FILED

Tentative Ruling: Granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600697	FEDEX VS CASTANEDA	MOTION FOR ISSUANCE OF NUNC PRO TUNC ORDER BY FEDEX

Tentative Ruling: Granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400859	WHITLEY VS AARON CHRYSLER DODGE JEEP RAM	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT FOR OTHER CONTRACT OF ZACHARY WHITLEY

Tentative Ruling: Granted. Defendants shall submit a proposed judgment within fourteen (14) days of this Order. The Court VACATES the trial readiness conference, currently set for September 4, 2026, and the OSC and court trial, currently set for September 11, 2026. The Court sets an OSC re receipt of judgment for August 20, 2026, at 8:30 a.m.

Defendant's Initial Burden

A defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. (CCP §437c(p)(2).) Once the defendant has met that burden, it shifts to plaintiff to show that a triable issue of material fact exists as to that cause of action or defense thereto. (CCP §437c(p)(2).) The moving party must meet its initial burden regardless of whether the opposing party files counter-declarations. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Where a defendant fails to meet its burden, the motion must be denied; plaintiff need not make any showing at all. (*Id.*)

Opposing Party's Burden

The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (CCP § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238.) Although summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.)

1st Cause of Action for Violation of CLRA

This is an action under Civil Code §1780, which provides that a consumer who is damaged by someone using an unlawful or deceptive practice may bring an action to recover actual damages, for an injunction, for restitution, for punitive damages, or other appropriate relief. Section 1780(a) provides that Civil Code §1770 illustrates unlawful or deceptive practices. The Complaint alleges violations of three subdivisions of *Civil Code* §1770.

The Complaint alleges that Plaintiff is a “person” as defined by Civil Code § 1761(c) and is a “consumer” as defined by Civil Code § 1761(d). (Compl. ¶ 20.) It is alleged that Dealer violated Civil Code § 1770(a)(7), (9), and (14) by falsely advertising the vehicle was covered by a lifetime limited warranty. (*Id.* ¶ 23.)

Defendants assert that the undisputed facts establish that Dealer did not falsely advertise the subject vehicle was covered by a lifetime limited warranty. (Undisputed Material Fact [UMF] Nos. 10 [no evidence of the advertisement], 11 [matters deemed admitted including authenticity of text messages between Plaintiff and Dealer acknowledging that there was no warranty.]) And, Plaintiff was aware that there was no such warranty provided. (UMF Nos. 5 [prior to purchase, Plaintiff was informed no such warranty], 6 [vehicle purchased “as is”], 8 [text messages confirm Plaintiff understood no warranty], 11 [deemed admissions].) Therefore, Defendants conclude that Plaintiff cannot establish a misrepresentation nor reliance on such representation.

These facts are unopposed.

3rd Cause of Action for Claim Against Dealer Bond

Vehicle Code § 11711(a) provides a consumer with a cause of action against the bond if the consumer suffers “any loss or damage by reason of any fraud practiced on him or fraudulent representation made to him by a licensed dealer or one of such dealer’s salesmen acting for the dealer, in his behalf, or within the scope of the employment of such salesman and such person has possession of a written instrument furnished by the licensee, containing stipulated provisions and guarantees which the person believes have been violated by any licensee.”

Vehicle Code § 11710 requires a licensed motor vehicle retail dealer to procure and file a bond in the amount of \$50,000. When a person suffers a loss due to the dealer's fraud, that person has a right of action against the dealer and surety on the bond in an amount not to exceed the value of the vehicle purchased. (Vehicle Code § 11711(a); *Pierce v. Western Surety Co.* (2012) 207 Cal.App.4th 83, 86.)

The Complaint alleges Plaintiff suffered a loss due to fraudulent representations, failures to disclose, and/or statutory violations of the Dealer and its representatives during the sale of the vehicle to Plaintiff. (Compl. ¶ 33.) Defendants assert that while this cause of action is not directed at the Dealer, it is based on the prior cause of action (1st c/ac; the 2nd c/ac was dismissed.) Defendants argue that this cause of action fails for the same reasons as the 1st cause of action fails. As a result, there is no fraud claim, nor violation of CLRA. This means the dealership bond is not triggered, and there is no cause of action against the Surety.

Based upon the foregoing, Defendants Aaron Chrysler Dodge Jeep Ram and the Ohio Casualty Insurance Company are entitled to summary adjudication of the 1st and 3rd causes of action in their favor. Because plaintiff dismissed the second cause of action in June 2024, the granting of summary adjudication disposes of the entire case.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2307012	VIDAL VS PROHAS ENTERPRISES	MOTION LEAVE TO CONDUCT MENTAL EXAMINATION BY EDITH REBECCA PAREDES, ERIC EMMANUEL PAREDES

Tentative Ruling:

The Court **OVERRULES** Plaintiffs' objections in full. The Court **GRANTS** the motion for a neuropsychological examination subject to a protective order. The Court **DENIES** Plaintiffs' requests to limit the scope of the examination (i.e., number of tests). The Court **DENIES** Defendants' request to prohibit Plaintiffs from audio recording the interview and examination. The Court **DENIES** Defendant's request to limit the release of raw data (test data and materials) to only a licensed psychologist. Defendants shall release the test data and materials to Plaintiffs' counsel. The Court **DENIES** Plaintiffs' counsel's request to attend the interview portion of the examination.

Evidentiary Objections

Plaintiffs object to certain statements in, and exhibits attached to, Dr. Boone's declaration, citing hearsay, lack of personal knowledge, and lack of authentication. The Court **OVERRULES** Plaintiffs' evidentiary objections in full, as these statements and